

Calendar lines 4 & 5

Case Name: *Taneisha Merritt-Rojas v. O'Connor Hospital et al.*

Case No.: 25CV460473

Demurrer and Motion to Strike by Defendant County of Santa Clara.

Factual and Procedural Background

On March 6, 2025, plaintiff Taneisha Merritt-Rojas (“Plaintiff”) filed the Complaint against defendant O’Connor Hospital alleging the following causes of action: (1) sexual assault; (2) battery; (3) negligence; (4) intentional infliction of emotional distress; and (5) violation of Civil Rights (Civil Code § 52.1).

According to the Complaint, on August 12, 2022, Plaintiff was discharged from the emergency room at O’Connor Hospital after receiving treatment for severe abdominal pain and complications. (Complaint, ¶ 6.) While waiting for transport outside of the emergency room, two security guards and two male hospital staff employed by O’Connor Hospital attacked Plaintiff without provocation. (*Id.* at ¶ 7.) The security guards and hospital staff harassed Plaintiff by physically restraining Plaintiff and making discriminatory and derogatory remarks. (*Id.* at ¶¶ 8-10.) Upon arrival at the scene, San Jose Police Department officers took no action to address the assault. (*Id.* at ¶ 12.) When Plaintiff made a complaint to O’Connor Hospital and San Jose Police Department’s Internal Affairs, O’Connor Hospital sent Plaintiff a letter acknowledging the incident and reassuring Plaintiff that the individuals involved would be reprimanded. (*Id.* at ¶ 14.)

On November 6, 2025, the County of Santa Clara (“County”)³ filed the present demurrer and motion to strike. On May 12, 2026, Plaintiff filed an untimely opposition only to the demurrer without a proof of service.⁴ Although the Court is not required to consider late-filed and improperly served papers, it will exercise its discretion to consider the late opposition because the County filed a timely reply addressing the substantive points of Plaintiff’s opposition. Plaintiff must comply with the Code of Civil Procedure and California Rules of Court in future filings.

Demurrer to the Complaint

The County demurs to the entire Complaint on the ground that it fails to state a claim because the claim is barred by Plaintiff’s failure to satisfy the claims presentation requirements of the Government Claims Act. (Code Civ. Proc., § 430.10, subs. (a), (e).) The County also demurs to: (1) the second through fifth causes of action on the ground that the claims are barred by the statute of limitations; (2) the first through fourth causes of action on the ground that Plaintiff cannot allege common law claims against the County; and (3) the fifth cause of cause of action because the Complaint fails to allege sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).)

Legal Standard

In ruling on a demurrer, the court treats the motion “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688 [citing *Blank v.*

³ The County asserts that it was erroneously sued as O’Connor Hospital.

⁴ Plaintiff should have filed her opposition by no later than May 7, 2026, nine court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Plaintiff does not provide an explanation for the late filing.

Kirwan (1985) 39 Cal.3d 311, 318].) “The reviewing court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. The court does not, however, assume the truth of contentions, deductions or conclusions of law.” (*Gregory v. Albertson’s, Inc.* (2002) 104 Cal.App.4th 845, 850.) However, it has long been held that on demurrer, leave to amend should be granted where ““there is a reasonable possibility that the defect can be cured by amendment.”” (*Loeffler v. Target Corp.* (2014) 58 Cal.4th 1081, 1100 (*Loeffler*); see also *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687.)

Plaintiff is self-represented, and self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) “[W]hen a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys. Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney.” (*Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1267, internal citations omitted.)

Discussion

Claim Presentation

The County argues that the Complaint does not allege compliance with the claim presentation requirement of the Government Claims Act (Gov. Code, § 810, et seq.) (the “Act”). The Court agrees. “Under the Act, no person may sue a public entity or public employee for ‘money or damages’ unless a timely written claim has been presented to and denied by the public entity.” (*County of Los Angeles v. Superior Court* (2005) 127 Cal.App.4th 1263, 1267, citations and quotation marks omitted.) To be timely, the claim generally must be presented to the particular entity within six months of accrual of the injury. (*A.M. v. Ventura Unified School Dist.* (2016) 3 Cal.App.5th 1252, 1257.) Plaintiff’s failure to allege compliance with the claim presentation requirement is fatal and precludes her from maintaining any claim against the County. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239 [“failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing suit against that entity.”])

In her late-filed opposition, Plaintiff asserts that she is excused from compliance because (1) the County is not a public entity or employee; (2) the claim arises from conduct outside the scope of public employment; and (3) delayed discovery delayed Plaintiff’s ability to file. Plaintiff, however, waives this argument by failing to cite any legal authority or providing any analysis in support of these assertions. (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 852 (*Benach*) [“When [a party] fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived.”].) Plaintiff also asserts that (1) she timely presented a claim in November 2022 and (2) general allegations of compliance are sufficient. These allegations, however, are not present within the Complaint.

For the foregoing reasons, and because Plaintiff asserts the Complaint may be amended to allege compliance with the Act, the County’s demurrer on the ground that the Complaint does not allege compliance with the claim presentation requirement of the Government Claims Act is SUSTAINED WITH 20 DAYS’ LEAVE TO AMEND. (See *Loeffler, supra*, 58 Cal.4th at p. 1100.)

Statute of Limitations

The County asserts that the second through fifth causes of action are barred by the applicable statute of limitations. The Court finds the argument persuasive. Plaintiff's second cause of action for battery, third cause of action for negligence, fourth cause of action for intentional infliction of emotional distress, and fifth cause of action for violation of Civil Code section 52.1 are subject to the two-year statute of limitations. (Code Civ. Proc., § 335.1.) The Complaint alleges that the claims accrued on August 12, 2022; thus, Plaintiff had until August 12, 2024 to file the instant action. Plaintiff did not file the operative complaint until March 6, 2025.

Plaintiff broadly claims that no time bar appears on the face of the Complaint, and in the alternative, equitable tolling and the extended limitations period for sexual assault claims tolled the applicable statute of limitations. The argument is unpersuasive as Plaintiff does not provide any authority or analysis in support of this argument. (See *Benach, supra*, 149 Cal.App.4th at p. 852.) Plaintiff also argues that the delayed discovery rule tolled the applicable statute of limitations because she did not discover the legal significance of her injuries until March 5, 2025—the day before she filed the Complaint. To rely on the delayed discovery rule, however, a complaint must specifically plead facts showing (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. (See *NBC Universal Media, LLC v. Superior Court* (2014) 225 Cal.App.4th 1222, 1232; see also *April Enterprises, Inc. v. KTTV* (1983) 147 Cal.App.3d 805, 832 [“plaintiff must plead facts sufficient to convince the trial judge that delayed discovery was justified”].) Here, the Complaint does not allege any of these facts.

On Reply, the County notes that Plaintiff filed federal civil rights lawsuit on January 5, 2024, and that lawsuit undercuts her assertion that she did not learn of the legal significance of her injuries until March 5, 2025. (County's Request for Judicial Notice, Ex. A.)⁵ While the federal complaint alleges similar facts (*e.g.*, Plaintiff was attacked by security guards and hospital staff), the federal complaint does not allege the same claims raised in the Complaint in this action. Instead, the federal complaint alleges violations of her First, Eighth, and Fourteenth Amendment Rights. Accordingly, it cannot be said that the federal complaint definitively proves that by January 5, 2024 (when the federal action was filed), Plaintiff knew the legal significance of her injuries for this action.

Given the foregoing, and because Plaintiff avers that the Complaint may be amended to allege the date and discovery of harm, the County's demurrer to the second through fifth causes of action on the ground that each claim is barred by the applicable statute of limitations is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND. (See *Loeffler, supra*, 58 Cal.4th at p. 1100.) Given this ruling, the Court declines to address the County's demurrer to the fifth cause of action on the ground that the claim is insufficiently pled.

Public Entity Liability

The County contends that the first through fourth causes of action are barred by Government Code section 815, subdivision (a)⁶ because a public entity cannot be liable for common law tort. (See *Quigley v. Garden Valley Fire Protection Dist.* (2019) 7 Cal.5th 798, 803 [“a public entity is not liable for an injury ‘[e]xcept as otherwise provided by

⁵ The Court GRANTS the County's request for judicial notice of the federal civil rights complaint. (Evid. Code., § 452, subd. (d).)

⁶ That subdivision provides, “Except as otherwise provided by statute . . . [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, § 815, subd. (a).)

statute.”]; *Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 897 [“there is no common law tort liability for public entities in California”]; *Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899 [“our own decisions confirm that section 815 abolishes common law tort liability for public entities.”]) The contention is persuasive, and Plaintiff does not respond to this point.

Given the foregoing, and as this is the first substantive pleadings challenge, the County’s demurrer to the first through fourth causes of action on the ground that Government Code section 815, subdivision (a) bars the claims is SUSTAINED WITH 20 DAYS’ LEAVE TO AMEND.

Motion to Strike

The County moves to strike the request for punitive damages in the Complaint.

Legal Standard

A court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court of rule or an order of the court. (See Code Civ. Proc., § 436.) The grounds for a motion to strike must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).)

Discussion

The County moves to strike the request for punitive damages pursuant to Government Code section 818, which provides, “Notwithstanding any other provision of law, a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant.” The argument is well-taken, and Plaintiff does not oppose the County’s motion to strike her claim for punitive damages.

Accordingly, the County’s motion to strike Plaintiff’s claim for punitive damages is GRANTED.

Disposition

The County’s demurrer on the ground that the Complaint does not allege compliance with the claim presentation requirement of the Government Claims Act is SUSTAINED WITH 20 DAYS’ LEAVE TO AMEND.

The County’s demurrer to the second through fifth causes of action on the ground that each claim is barred by the applicable statute of limitations is SUSTAINED WITH 20 DAYS’ LEAVE TO AMEND.

The County’s demurrer to the first through fourth causes of action on the ground that Government Code section 815, subdivision (a) bars the claims is SUSTAINED WITH 20 DAYS’ LEAVE TO AMEND.

The County’s motion to strike the request for punitive damages from the Complaint is GRANTED.

The Court will prepare the Order.